

23STCV04531 23STCV04531

County: los-angeles

Division: Civil Law and Motion

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Hearing date: 2026-07-30

Motion: PLAINTIFF'S MOTION FOR SUMMARY ADJUDICATION [CRS # 4455]

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Case Number: 23STCV04531 Hearing Date: July 30, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

REBEKAH SHUMAN, individually, in her capacity as the co-trustee of The 2020 Shuman Family Trust, and derivatively on behalf of THE SHUMAN MANAGEMENT COMPANY, INC., a California corporation;

Plaintiff.

v.

LAWRENCE J. SHUMAN, individually and in his capacity as a co-trustee of The 2020 Shuman Family Trust; and DOES 1-50, inclusive,

Defendants.

AND

THE SHUMAN MANAGEMENT COMPANY, INC., a California corporation

Nominal-Defendant.

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CASE NO: 23STCV04531

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION FOR SUMMARY ADJUDICATION [CRS # 4455]

Dept. 731

July 30, 2026

8:30 A.M.

Matter No. 17

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[TENTATIVE] ORDER RE: DEFENDANT LAWRENCE J. SHUMAN'S MOTION FOR SUMMARY ADJUDICATION [CRS # 9477]

Dept. 731

July 30, 2026

8:30 A.M.

Matter No. 17

Rebekah Shuman Motion for Summary Adjudication [CRS # 4455]

Moving Party: Plaintiff, Rebekah Shuman

Opposing Party: Defendant, Lawrence J. Shuman, individually and in his capacity as a co-trustee of The 2020 Shuman Family Trust

Notice: OK

Lawrence Shuman Motion for Summary Adjudication [CRS # 9477]

Moving Party: Defendant, Lawrence J. Shuman, individually and in his capacity as a co-trustee of The 2020 Shuman Family Trust

Opposing Party: Plaintiff, Rebekah Shuman

Notice: OK

Background Facts

Plaintiff Rebekah Shuman ("Plaintiff") sues Defendant Lawrence J. Shuman ("Defendant"), individually and in his capacity as a co-trustee of The 2020 Shuman Family Trust, and Nominal Defendant The Shuman Management Company, Inc. ("TSMC") pursuant to a March 1, 2023, Complaint alleging claims of (1) Breach of Express Contract, (2) Breach of Implied-In-Fact Contract, (3) Fraud, (4) Breach of Fiduciary Duty, (5) Breach of Fiduciary Duty, (6) Quiet Title, (7) Conversion, (8) Accounting, (9) Failure to Produce Corporate Books and Records, (10) Constructive Trust, and (11) Declaratory Relief.

The claims arise from allegations that following a twenty-three year romantic relationship, including more than ten years of marriage, the parties in this action separated, since which time Defendant has attempted to shut out Plaintiff from receipt of her one-half interest in the assets acquired by the parties throughout their relationship, including but not limited to the couple's successful literary and production company, TSMC, that was built together by both Defendant and Plaintiff during their twenty-three (23)-year romantic relationship and marriage.

Now before the Court are:

(1) Plaintiff's opposed January 22, 2026, motion for summary adjudication of the Complaint's first, third, fourth, and seventh causes of action for Breach of Contract, Fraud, Breach of Fiduciary Duty, and Conversion (CRS # 4455) (originally set for hearing on April 30, 2026; opposition filed by Defendant on April 15, 2026; reply filed by Plaintiff on April 24, 2026; hearing continued to June 18, 2026, on April 29, 2026, per parties' stipulation; hearing continued to July 30, 2026, on June 18, 2026, as based on peremptory challenge to judicial officer); and

(2) Defendant's opposed March 27, 2026, motion for summary judgment or, in the alternative, summary adjudication of the Complaint's eleven causes of action (CRS # 9477) (originally set for hearing on June 18, 2026; opposition filed by Plaintiff on May 29, 2026; reply filed by Defendant on June 5, 2026; hearing continued to July 30, 2026, on June 18, 2026, as based on peremptory challenge to judicial officer).

Plaintiff's Motion for Summary Adjudication [CRS # 4455]

Evidentiary Objections

NOT RULED ON: All objections (Code Civ. Proc., § 437c, subd. (q))

OVERRULED: None

SUSTAINED: None

Discussion

After review, the Court DENIES Plaintiff's motion on procedural grounds.

"Trial courts should not hesitate to deny summary judgment motions when the moving party fails to draft a compliant separate statement," such as a "separate statement [that] includes an overly long document that includes multiple nonmaterial facts in violation of the Rules of Court." (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865,

First, Code of Civil Procedure section 437c, subdivision (b)(1), requires each motion for summary judgment to be accompanied by a separate statement “setting forth plainly and concisely all material facts that the moving party contends are undisputed.” In turn, California Rules of Court, rule 3.1350(d)(2) provides that the “separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.” Under the Rules of Court, “[m]aterial facts’ are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.” (Cal. Rules of Court, rule 3.1350(a)(2).) Courts may deny a summary judgment or adjudication motion failing to comply with this requirement. (See Beltran, *supra*, 97 Cal.App.5th at p. 876 [“an inappropriate separate statement includes an overly long document that includes multiple nonmaterial facts in violation of the Rules of Court”].)

Here, the separate statement attached to the moving papers includes undisputed material facts comprised of multiple passages and supporting pieces of evidence, not all of which are material to the disposition of the issues at hand. For example, in UMF No. 5, the separate statement discusses the parties’ conception of two children and fertility efforts within the context of putatively seeking summary adjudication of the first cause of action for breach of express contract, thus showing non-material facts.

Second and on a related point, the separate statement filed by Plaintiff combines multiple factual propositions in a single undisputed material fact and confusingly does not directly, 1:1 correspond the cited evidence to the cited factual propositions. (See, e.g., Motion, Separate Statement, UMF No. 7 [multiple sentence paragraph in left-hand column, without citations to evidence at the end of each sentence, and with the cited evidence presented in a separate column altogether].) This violates California Rule of Court, rules 3.1350(d)(3), providing that a separate statement must cite proposition of fact, directly followed by a prescribed citation to evidence, presented in a two-column format, as required by subsection (h). The separate statement also violates rule 3.1350(h), which sets the two-column format for a separate statement, with the moving party’s material facts and evidence stated in the left-hand column, and the opposing party’s material facts and evidence presented in a column on the right. Subsection (h) on its face provides various illustrations of proper formatting, which a comparison to Plaintiff’s separate statement shows were not followed. (Compare Cal. Rules of Court, rule 3.1350(h) [In an example of proper formatting, in the left column, stating: “Plaintiff and defendant entered into a written contract for the sale of widgets. Jackson declaration, 2:17-21; contract, Ex. A to Jackson declaration.”], with, e.g., Motion, Separate Statement, UMF No. 7 [multiple sentence paragraph in left-hand column, without citations to evidence at the end of each sentence, and with the cited evidence presented in a separate column altogether].) This deficiency contrasts with the separate statement filed by Plaintiff in opposition to a separate motion for adjudication by Defendant, which more closely follows these rules of court. (See May 20, 2026, Separate Statement [CRS # 9477].)

Third, Plaintiff’s papers violate California Rules of Court, rule 3.1350(b), which requires that (1) a motion summary adjudication specifically state in the notice of motion the specific cause of action, affirmative defense, claims for damages, or issues of duty on which summary adjudication is sought, and (2) the foregoing statements in the notice be repeated verbatim in the separate statement.

Here, the 3.1350(b) statements in Plaintiff’s notice of motion do not verbatim match her separate statement. (Compare, e.g., Motion, 2:16-20 [notice of motion re: third and fourth causes of action], with Motion, Separate Statement, § 3 at p. 17 [corresponding header in separate statement not copied over verbatim].) This omission—beyond being a violation of the rule itself and thus a basis for denial (see Beltran, *supra*, 97 Cal.App.5th at p. 876)—lent great confusion to the papers. For example, Plaintiff’s notice of motion seeks summary adjudication of the first cause of action for breach of express contract, but the points and authorities instead focus on seeking summary adjudication of the second cause of action for breach of implied-in-fact contract. (Compare Complaint, ¶¶ 65-90, with *id.* at ¶¶ 91-101 [express and implied breach of contract claims]; also compare Motion, 2:12-15 [notice attacking first cause of action], with *id.* at pp. 6-20 [presential arguments for implied-in-fact breach of contract].)

The Court may deny summary adjudication under the above circumstances. (Beltran, *supra*, 97 Cal.App.5th at p. 876.)

Conclusion

Plaintiff Rebekah Shuman's Motion for Summary Adjudication [CRS # 4455] is accordingly DENIED.

Defendant's Motion for Summary Adjudication [CRS # 9477]

Evidentiary Objections

NOT RULED ON: All objections (Code Civ. Proc., § 437c, subd. (q))

SUSTAINED: None

OVERRULED: None

Legal Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact for trial or that the moving party is entitled to a judgment as a matter of law. (Code of Civ. Proc., § 437c, subd. (c).) A party may also seek summary adjudication of select causes of action, affirmative defenses, claims for damages, or issues of duty, which may be made by a standalone motion or as an alternative to a motion for summary judgment and proceeds in all procedural respects like a motion for summary judgment, but which must completely dispose of the challenged cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t).)

The moving party bears the initial burden of production to make prima facie showing no triable material fact issues. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) This burden on summary judgment or adjudication "is more properly one of persuasion rather than proof, since he must persuade the court that there is no material fact for a reasonable trier of fact to find, and not to prove any such fact to the satisfaction of the court itself as though it were sitting as the trier of fact." (Id. at p. 850, fn. 11.) If the moving party meets this burden, the burden shifts to the opposing party to make a rebuttal prima facie showing that a triable issue of material fact exists. (Id. at p. 849.)

Where a defendant seeks summary judgment or adjudication, the defendant must show that either "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action." (Code Civ. Proc., § 437c, subd. (o)(2).) A defendant may satisfy this burden by showing that the claim "cannot be established" because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a "triable issue of one or more material facts exists as to that cause of action or defense thereto." (Ibid.) "[I]n ruling on motions for summary judgment courts are to 'liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.'" [Citations]. (Cheal v. El Camino Hospital (2014) 223 Cal.App.4th 736, 760.).

Discussion

Summary Adjudication, First Cause of Action

Plaintiff's first cause of action alleges a breach of an express contract (a "Grand Promise" allegedly made by Defendant verbally to Plaintiff in 1999) based on Defendant filing for divorce on August 22, 2022, which, based on the terms sought by Defendant in the divorce, breached the promises in the Grand Promise to divide assets for Plaintiff's benefit and provide her

with continued financial support for the rest of her life. (Complaint, ¶¶ 65-90 [entire cause of action, with above facts at ¶ 87].)

In his motion, Defendant argues that the first cause of action fails on summary adjudication because (1) it is beyond its statute of limitations and (2) remedative theories for a lapse in the limitations period, e.g., the discovery rule or fraud, among others, are inapplicable. (Motion, pp. 10-14.)

After review, the Court determines that Defendant fails to carry his burden on summary adjudication.

A breach of contract claim based on a contract not in writing is subject to a two-year statute of limitations. (Code Civ. Proc., § 339.) A statute of limitations starts to run once the cause of action “accrues,” and although a cause of action typically accrues when it is complete with all of its elements, a cause of action will at times be deemed to accrue at a later date, such as when the plaintiff did not discover and had no occasion to discover the cause of action until that later date (the discovery rule), when the defendant fraudulently concealed the existence of a possible claim until that later date, or when the defendant committed multiple wrongs that ended on that later date (the continuing violations doctrine). (Doe v. Roman Catholic Archbishop of Los Angeles (2016) 247 Cal.App.4th 953, 961.)

Here, the Complaint alleges that “[y]ear after year, Rebekah and Larry continually reaffirmed and ratified their agreement(s), including without limitation, Larry’s ‘Grand Promise’” (Complaint, ¶ 78), and that the Grand Promise was breached on August 22, 2022, when Defendant filed for divorce. (Complaint, ¶ 76.)

These theories for liability must be addressed in the moving papers because a defendant moving for summary judgment has the burden “to identify and respond to all theories of liability reflected in the complaint, ‘even if not separately pleaded.’ [Citation.] ... While a plaintiff ... need sustain its burden of proof only on one of the theories in order to prevail at trial, a defendant who seeks a summary judgment must define all of the theories alleged in the complaint and challenge each factually.” (Lopez v. Superior Court (1996) 45 Cal.App.4th 705, 714 (Lopez); see Johnson v. Chui (2011) 199 Cal.App.4th 775, 778 “[A] defendant is entitled to summary judgment only when all theories of liability have been negated”; Farley v. El Tejon Unified School Dist. (1990) 225 Cal.App.3d 371, 379 “[T]o prevail on its motion for summary judgment, [the defendant] had the burden of negating every alternative theory of liability presented by the pleadings”.) Where a motion for summary judgment does “not negate theories of [the defendant’s] liability, the trial court should” rule “[the defendant] failed to carry [its] initial burden and stop[] there.” (Hedayati v. Interinsurance Exchange of the Automobile Club (2021) 67 Cal.App.5th 833, 846; see Hawkins v. Wilton (2006) 144 Cal.App.4th 936, 945.)

Here, while the moving papers argue that a number of remediating theories for breach of contract do not apply (including the discovery rule), there is no evidence before the Court to negate the allegation in the Complaint that “[y]ear after year, Rebekah and Larry continually reaffirmed and ratified their agreement(s),” with Defendant allegedly only breaching the Grand Promise on August 22, 2022. (Complaint, ¶¶ 76, 78.) Instead, Defendant points to numerous acts by Defendants over the years that putatively should have put Plaintiff on notice that the Grand Promise had been breached well before August 22, 2022. (Motion, pp. 10-14.) However, such arguments do not address the allegation that the Grand Promise was reaffirmed and ratified year after year between 1999 and 2022. Consequently, Defendant presents evidence on the one hand to show Plaintiff was on notice of breach well before August 2022, while on the other hand failing to negate the theory that Defendant reaffirmed and ratified the Grand Promise from year to year. Even if the Court accepted Defendant’s arguments and evidence, this inconsistency alone shows triable issues of material fact as to the first cause of action for failure to capture and negate all of Plaintiff’s theories in support of the claim.

Summarized, for failure to negate the “year after year” allegation, Defendant has failed to show that no triable issues of material fact remain as to whether breach occurred before expiration of the statute of limitations, where the Complaint alleges a breach date of August 22, 2022, and this action was filed less than a year later on March 1, 2023.

Defendant’s motion for summary adjudication of the first cause of action is thus DENIED.

Summary Adjudication, Second Cause of Action

The Complaint's second cause of action alleges that through implied conduct, Defendant separately entered into a contract with Plaintiff whereby at Defendant's request, Plaintiff gave up various goals and career opportunities which would have benefitted her in the future so that she would be able to devote most of her time and attention to Defendant's personal needs as called upon, with the continued assurance that she would then and in the future, in case of the termination of their relationship, obtain a division of the parties' assets and that she would be rendered financially secure. (Complaint, ¶¶ 91-101 [above proposition at ¶ 96.a].)

As with the first cause of action, Defendant argues on summary adjudication that the second cause of action is beyond its statute of limitations and not subject to remedying theories. (Motion, pp. 14-15.)

However, a review of the second cause of action shows that it is subject to the same reasoning as the first cause of action vis-à-vis the statute of limitations. Specifically, the Complaint alleges that "[y]ear after year, Rebekah and Larry continually reaffirmed and ratified their agreement(s), including without limitation, Larry's 'Grand Promise'" (Complaint, ¶ 78), with Defendant thereafter breaching the parties' implied-in-fact agreements on August 22, 2022, when he filed for divorce and repudiated his obligations under the implied-in-fact agreements. (Complaint, ¶¶ 91 [incorporating prior allegations, including ¶ 78], 97 [breach of implied agreements on August 22, 2022, at initiation of divorce proceedings].)

Consequently, on the same reasoning as discussed in relation to the first cause of action, the Court determines that Defendant fails to carry his burden to show that no triable issues of material fact remain as to whether breach occurred before expiration of the statute of limitations, where the Complaint alleges a breach date of August 22, 2022, and this action was filed less than a year later on March 1, 2023.

Accordingly, Defendant's motion for summary adjudication is DENIED as to the second cause of action.

Summary Adjudication, Third Cause of Action

The Complaint's third cause of action alleges fraud against Defendant based on two distinct misrepresentations: (1) the Grand Promise made in 1999 regarding care and assets, which Defendant never intended to honor when the Promise was made; and (2) a 2001 misrepresentation by Defendant at the time it was made, to the effect that Defendant would not hold against Plaintiff quitclaim deeds conveying Plaintiff's interest in certain real property to Defendant (the Las Casas property), used to obtain more favorable terms on purchase of a separate property (the Albright property), with Defendant promising to hold Plaintiff's conveyed 50% interest in the Las Casas property in trust for Plaintiff. (Complaint, ¶¶ 103-108.)

The Complaint also points to Defendant's receipt of sale proceeds of the Albright property in 2014 as supporting the fraud claim, which the Court reads as exposition of how Plaintiff continued to rely on the 2001 promise relating to the Las Casas and Albright properties rather than as a misrepresentation in and of itself, particularly where a deposit of funds is not a misrepresentation as contemplated in fraud claims. (Complaint, ¶ 108 ["By [his] acceptance of the funds from the sale of the Albright Street Property, [Defendant] continued to perpetrate a fraud upon [Plaintiff] and induce her into believing all assets acquired by the Parties were joint assets that were equally owned, regardless of the manner of which title was held."].)

Defendant challenges this claim on summary adjudication, arguing that the 1999 Grand Promise and 2001 representations, if fraudulent, ran their statute of limitations well before this action was filed, with the Grand Promise running its limitations period by January 2004 (three years after the representation is alleged to have been made), and the 2001 representation running its limitations period by July 2004 (three years after the representation is alleged to have been made). (Motion, pp. 16-17).

After review, the Court determines that Defendant fails to carry his burden on summary adjudication.

“An action for relief on the ground of fraud” is subject to a three-year statute of limitations, where “[t]he cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud” (Code Civ. Proc., § 338, subd. (d).)

Here, the Complaint provides sufficient allegations to set an alleged discovery date of August 22, 2022, when the divorce proceedings were initiated. (Complaint, ¶¶ 78, 102, 110.)

In his motion for summary adjudication, Defendant argues that the limitations periods here began from the date on which the representations were made, citing *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807 in support. (Motion, pp. 16-17.)

However, the plain face of section 338, subdivision (d) is clear: “An action for relief on the ground of fraud” is subject to a three-year statute of limitations, where “[t]he cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud”

Critically, Defendant's citation to *Fox* is misplaced. *Fox* discusses the law behind accrual for a cause of action, where, at most, the court stated that a cause of action begins to accrue when the plaintiff has suspicion of one element of a claim coupled with knowledge of the other elements of that claim, and that lack of knowledge as to a defendant's identity in that case did not impede the limitations period from running because the defendant's identity was not an element of the cause of action. (*Fox*, supra, at p. 807.) Defendant is admonished for citing a published authority to support a proposition for which the cited authority does not stand.

Accordingly, summary adjudication of the Complaint's third cause of action DENIED.

Summary Adjudication, Fourth Cause of Action

The fourth cause of action alleges a breach of fiduciary duty from Defendant to Plaintiff based on Plaintiff's 2001 quitclaim deed, and based on Defendant's corresponding representations to not hold the quitclaim deeds against Plaintiff, which created a fiduciary duty to Plaintiff with respect to the interest Defendant should have been holding in trust for Plaintiff, and which Defendant breached when he filed for divorce on August 22, 2022, alleging that the Las Casas property was his sole and separate property, thus depriving Plaintiff of her interest in that property. (Complaint, ¶¶ 113-117.)

Defendant challenges the fourth cause of action on summary adjudication on the grounds that no triable issues exist as to (1) a duty from Defendant to Plaintiff or (2) whether the limitations period has run on the claim. (Motion, pp. 18-19.)

The Court addresses each ground in turn.

Duty

In support of the ‘no duty exist’ argument on summary adjudication, Defendant argues that *Maglica v. Maglica* (1998) 66 Cal.App.4th 442 purportedly holds that, without entrustment of property, or an oral agreement to purchase property together, there can be no fiduciary relationship no matter how ‘confidential’ a relationship between an unmarried, cohabiting couple. (Motion, p. 18.)

While this proposition of law is correct insofar as it goes, it does not carry Defendant's burden on summary adjudication.

The Complaint in fact alleges that Plaintiff's interest in the Las Casas property would be held by Defendant in trust for her, and that Defendant acted against his promise to hold Plaintiff's interest in trust when he initiated divorce proceedings and claimed Plaintiff had no interest in the property. (Complaint, ¶¶ 114-116.)

In his motion, as against the 2001 representations, Defendant argues the quitclaim deeds executed by Plaintiff in 2001 on their face negate any entrustment theory because in effect they do not retain for Plaintiff any interest in the property. (See Motion, 18:18-25.)

However, nowhere do the moving papers address, in relation to the fourth cause of action, why Defendant's alleged promise to hold a 50% interest in the Las Casas property in spite of Plaintiff's execution of the quitclaim deeds—a theory explicitly alleged in the Complaint (see, e.g., Complaint, ¶ 114)—constitutes entrustment for duty purposes.

Consequently, the moving papers do not negate all theories for liability alleged in the Complaint in relation to the fourth cause of action, for which reason summary adjudication against the fourth cause of action cannot be granted on the ground that no triable issues exist as to duty. (Lopez, supra, 45 Cal.App.4th at p. 714.)

Statute of Limitations

Defendant next contends that the statute of limitations period ran on the breach of fiduciary claim four years after the alleged 2001 representations. (Motion, pp. 18-19.)

The Court finds this position unavailing.

Ante, with respect to the third cause of action, the Court determined that triable issues remain as to when the limitations period was triggered in relation to duties arising from the 2001 agreement, reasoning that triable issues remained as to whether the 2001 promises were breached on the alleged date of August 22, 2022.

Because the fourth cause of action—subject to a four-year limitations period (Code Civ. Proc., § 343 [catch-all provision])—arises from the transactions involved in the third cause of action, i.e., the 2001 transactions, the Court adopts like reasoning to determine that triable issues remain as to whether discovery of the harm contemplated in the fourth cause of action occurred before August 22, 2022, as alleged in the Complaint, undercutting Defendant's limitations position here.

Having failed to carry his burden on either theory for summary adjudication of the fourth cause of action, such relief is DENIED.

Summary Adjudication, Fifth Cause of Action

The Complaint's fifth cause of action alleges breach of fiduciary duties owed to Plaintiff by Defendant, to wit, breach of duties owed by Defendant as shareholder, member, and officer in Defendant TSMC, arising from Defendant's failure to account for Plaintiff's interest in the company, use of TSMC monies to pay personal obligations, refusal to pay owed income to Plaintiff, and wrongfully asserting Plaintiff has no interest in TSMC. (Complaint, ¶¶ 121-125.d.)

Defendant moves for summary adjudication of this cause of action on two grounds: (1) Plaintiff never acquired an interest in TSMC, where Plaintiff's only two pieces of evidence to show such an interest—a non-endorsed stock certificate, and listing of Plaintiff on K-1 schedules filed by TSMC—fail to show transfer of an interest in TSMC to Plaintiff; and (2) the limitations period has run on this claim. (Motion, pp. 19-21.)

After review, the Court determines that Defendant fails to carry his burden on both issues.

Regarding interest in TSMC, the first and second causes of action survived summary adjudication, thus leaving triable issues as to whether, by way of express or implied agreements, Plaintiff acquired an interest in TSMC. (See, e.g., Complaint, ¶ 97 [In second cause of action, alleging that “[o]n or about August 22, 2022, [Defendant] took a position with regard to the Parties’ ownership of assets that was in direct contradiction to their long-standing agreement that all assets were owned equally by the Parties,” emphasis added].) Yet, Defendant’s argument is narrower, relating to whether an interest was gained in TSMC by Plaintiff through a stock certificate or representations in K-1 filings (Motion, pp. 19-21), as opposed to through implied conduct throughout the entirety of the parties’ relationship or equitable grounds. Because the latter ground presents triable issues as to whether Plaintiff acquired an interest in TSMC through implied conduct or equitable grounds, Defendant’s arguments do not negate all theories for showing that Plaintiff did in fact have an interest in TSMC. The motion, as based on this argument, must thus necessarily fail vis-à-vis the fifth cause of action. (Lopez, supra, 45 Cal.App.4th at p. 714.)

As for the statute of limitations, without great elaboration or even providing a final limitations date, Defendant argues that breaches of the four duties alleged in the fifth cause of action were open and notorious long before this action was filed, triggering the limitations period, which elapsed long before this action was filed. (Motion, 21:14-24.) This argument is insufficiently elaborated to support relief here. (See (Motion, 21:14-24.)

Accordingly, Defendant’s motion for summary adjudication is DENIED as to the fifth cause of action.

Summary Adjudication, Sixth Cause of Action

The sixth cause of action alleges a quiet title claim seeking to confirm Plaintiff’s alleged 50% interest in the Las Casas property. (See Complaint, ¶¶ 130-136.)

Defendant argues that the claim fails on summary adjudication because (1) laches forecloses relief to Plaintiff insofar as Plaintiff sat on her hands for more than 20 years between the 2001 transactions conveying Plaintiff’s interest in the subject property and the time this action was filed in 2023 and (2) because the underlying fraud claim failed, for which reason this derivative claim must also fail. (Motion, pp. 21-23.)

After review, the Court determines Defendant failed to carry his burden on summary adjudication.

As for laches, the argument is unavailing. In order to establish laches, the party must show: “(1) delay in asserting a right or a claim; (2) the delay was not reasonable or excusable; and (3) prejudice to the party against whom laches is asserted. [Citations.]” (Magic Kitchen LLC v. Good Things Internat., Ltd. (2007) 153 Cal.App.4th 1144, 1157 (Magic Kitchen).) Here, the Court adopts its discussion ante vis-à-vis the third and fourth causes of action to determine that because triable issues remain as to when the limitations period began to run on the 2001 transactions, triable issues remain as to whether laches (which requires unreasonable or inexcusable delay) forecloses relief on the sixth cause of action.

As for the argument that this claim fails as derivative of the fraud claim, the fraud claim was not defeated on summary adjudication, undercutting this position.

Summary adjudication of the sixth cause of action is accordingly DENIED.

Summary Adjudication, Seventh Cause of Action

The Complaint’s seventh cause of action alleges conversion against Defendant arising from allegations that Defendants converted monies to which Plaintiff was entitled as part of their business partnership going back to 1999, ownership interests

in mutually purchased real property, and a number of personal property items such as computers, appliances, and antiques. (Complaint, ¶¶ 137-142.)

On summary adjudication, Defendant argues that the seventh cause of action only alleges conversion in two ways—wage conversion, and ERISA (retirement income) distribution conversion—and that any conversion by wage theft fails for various reasons. (Motion, pp. 23-24.) However, Defendant also explicitly declined to submit arguments as against ERISA conversion. (Motion, 23:27-24-4.) Moreover, Defendant's motion fails to address the conversion of chattels alleged in the Complaint. (Complaint, ¶¶ 138-138.xiii.) Consequently, not all theories of liability for conversion alleged in the Complaint have been negated, for which summary adjudication as to the entire seventh cause of action (as sought here) must fail. (Lopez, supra, 45 Cal.App.4th at p. 714.)

Accordingly, Defendant's motion for summary adjudication is DENIED as to the seventh cause of action.

Summary Adjudication, Eighth Cause of Action

The Complaint's eighth cause of action alleges accounting against Defendants based on allegations that Plaintiff is a shareholder in TSMC and is thus entitled to an accounting with respect to outstanding distributions, dividends, and/or interest income, implicitly relying on pleading by incorporation to establish Plaintiff's interest in TSMC. (See Complaint, ¶¶ 143, 144, 146.)

On summary adjudication Defendant argues that the eighth cause of action fails because (1) the underlying first through fifth causes of action failed, (2) information asymmetry (equal accounting information held by Plaintiff, specifically through discovery in this action) exists here and defeats the accounting claim, and (3) Plaintiff lacks shareholder standing in TSMC.

After review, the Court finds all three grounds unavailing on summary adjudication.

First, summary adjudication of the first through fifth causes of action was denied.

Second, Defendant insufficiently elaborated the grounds to support the position that information asymmetry forecloses relief here. (See Motion, 24:25-28.) A review of Defendant's papers fails to show a pin cite for the cited authority, *Sass v. Cohen* (2020) 10 Cal.5th 861 (Sass). (See Motion, 24:25-28.) At most, and in relevant part, Sass appears to be cited for the proposition that "the underpinning of an accounting action is an information asymmetry between the parties, an asymmetry that generally favors the defendant but never the plaintiff." (Sass, supra, at pp. 869-870.) However, citing such authority does nothing to carry Defendant's burden to show how the facts before the Court show no triable issues as to the existence of information symmetry defeating the accounting claim. Defendant merely cites to discovery served by Plaintiff after this action was initiated to seemingly argue that because information symmetry occurred during discovery, Plaintiff's accounting claim has been rendered moot. The Court rejects that position for lack of meaningful elaboration.

Third, as discussed in relation to the fifth cause of action, triable issues remain as to whether Plaintiff is a shareholder of TSMC, which would entitle her to an accounting.

Summary adjudication of the Complaint's eighth cause of action is thus DENIED.

Summary Adjudication, Ninth Cause of Action

The Complaint's ninth cause of action alleges a claim of failure to produce corporate books and records against Defendants based on Defendants' refusal to turn over these materials following Plaintiff's February 23, 2023, demand for the same. (Complaint, ¶¶ 152-158.)

Defendant here challenges the claim on summary adjudication, arguing that the claim fails here because (1) Plaintiff is not a shareholder in TSMC, (2) the pre-suit demand served six days before suit was filed fails to comply with the good faith requirement in the statute vis-à-vis demands, and (3) the lack of a valid stock certificate in favor of Plaintiff forecloses relief.

After review, the Court determines all three arguments are unavailing.

First, as discussed in relation to the fifth cause of action, triable issues remain as to whether Plaintiff is a shareholder of TSMC, which would entitle her to the records sought by way of this claim.

Second, Defendant's argument that a demand served six days before a suit is filed cannot amount to good faith is insufficiently elaborated for the Court to give credence to this position as applied to the facts before the Court. (Motion, 25:20-25.)

Third, as discussed in relation to the fifth cause of action, even if stock were not issued, Defendant's motion does not sufficiently address implied-in-fact or equitable grounds for Plaintiff having a 50% interest in TSMC, undermining Defendant's last argument in support of summary adjudication of the ninth cause of action.

Summary adjudication of the ninth cause of action is accordingly DENIED.

Summary Adjudication, Tenth Cause of Action

The Court GRANTS summary adjudication of the tenth cause of action.

As recognized by Defendant's motion, a claim for 'constructive trust' is not a cognizable cause of action in California, but rather, is a form of remedy. (Glue-Fold, Inc. v. Slautterback Corp. (2000) 82 Cal.App.4th 1018, 1022-1023, fn. 3 ["... a ... cause of action seeking imposition of a constructive trust" "is not an independent cause of action but merely a type of remedy for some categories of underlying wrong"].)

While Defendant's motion seeks to nevertheless resolve the issue of constructive trust, no such relief can be granted. The issue of constructive trust was raised within the context of challenging the tenth cause of action, which is not a viable cause of action, thus mooting further discussion on the topic.

Summary Adjudication, Eleventh Cause of Action

The Complaint's eleventh cause of action seeks a declaration of respective rights, duties, and obligations in TSMC. (Complaint, ¶ 165.)

Defendant moves for summary adjudication of the declaratory relief claim on the grounds that (1) no justiciable controversy exists here where all underlying claims (causes of action 1 through 10) will have failed on summary adjudication and (2) this claim being derivative of the first ten causes of action, declaratory relief would need to be barred where its underlying claims are also barred by their statute of limitations. (Motion, pp. 26-27.)

Both arguments fail.

First, the Court has denied Defendant's motion as to the first nine causes of action, including on the grounds that triable issues remain as to whether Plaintiff is a shareholder of TSMC. (See discussion for Fifth Cause of Action ante.) If triable issues remain as to that shareholder status, then triable issues remain as to respective rights, duties, and obligations in TSMC, as sought in this claim.

Second, as discussed above, Defendant failed to carry his burden on his statute of limitation arguments, undermining his second position against the eleventh cause of action.

Summary adjudication of the eleventh cause of action is accordingly DENIED.

Conclusion

Defendant Lawrence J. Shuman's Motion for Summary Adjudication [CRS # 9477] is:

GRANTED as to the tenth cause of action alleged in Plaintiff's Complaint; and

DENIED as to the remaining causes of action alleged in Plaintiff's Complaint.

Defendant Lawrence J. Shuman is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 30, 2026 _____

MARK C. KIM

Judge of the Superior Court